

Language Commission Act, 2017

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Act No. 40 of the year 2074

An Act Made to Provide for Matters Relating to the Language Commission

Preamble: Whereas, it is desirable to make legal provisions regarding the functions, duties, powers and procedures of the Language Commission,

Now, therefore, the Legislature-Parliament has enacted this Act in accordance with Sub-article (1) of Article 296 of the Constitution of Nepal. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Language Commission Act, 2074".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Chairperson" means the Chairperson of the Commission.

(b) "Commission" means the Language Commission constituted pursuant to Article 287 of the Constitution.

(c) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(d) "Member" means a member of the Commission and such term shall also mean the Chairperson.

(e) "Constitution" means the Constitution of Nepal. Chapter-2

Functions, Duties, Powers and Procedures of the Commission

3. Functions, Duties and Powers of the Commission: In addition to the functions, duties and powers mentioned in Sub-article (6) of Article 287 of the Constitution, the other functions, duties and powers of the Commission shall be as follows:-

(a) To identify the mother languages spoken in Nepal,

(b) To recommend to the Nepal Government on the policy or institutional measures to be adopted by the Nepal Government, Provincial Government or Local Level Government for the protection, promotion and development of mother languages spoken in Nepal,

(c) To formulate necessary programs for the protection, promotion and development of mother languages and scripts spoken in Nepal and recommend to the concerned bodies to implement or cause to implement them,

- (d) To study, research and publish mother languages spoken in Nepal and their history,
 - (e) To publish books of such language for the protection, promotion and development of mother languages and scripts of various communities and recommend to the concerned bodies to publish such books,
 - (f) To study and research to make the use of mother languages spoken in Nepal technology-friendly and recommend to the concerned bodies to adopt appropriate measures,
 - (g) To prepare a list of linguists of national languages.
4. May Obtain Advice and Consultation: The Commission may consult or obtain advice from other constitutional bodies, government offices or public institutions in relation to its work and proceedings.

5. May Obtain Services of Experts: If any work to be performed pursuant to this Act and prevailing federal law cannot be accomplished from the manpower working in the Commission, the Commission may, stating the reason thereof, obtain the services of experts in accordance with the prevailing federal law.

6. May Form Committee or Task Force: (1) For the purpose of performing any work of a special nature relating to the Commission, the Commission may, by prescribing procedures, form any committee or task force. (2) The working conditions or terms of reference of the committee or task force formed pursuant to Sub-section (1) shall be as determined by the Commission at the time of forming such committee or task force.

7. May Coordinate and Cooperate: The Commission may, as required, carry out necessary coordination and cooperation with government bodies or public institutions.

Chapter-3 Functions, Duties, Powers, Remuneration and Facilities of Chairperson and Members

8. Functions, Duties and Powers of Chairperson: (1) The Chairperson shall be the chief officer of the Commission. All work and proceedings of the Commission shall be conducted under the general direction and supervision of the Chairperson. (2) In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Chairperson shall be as follows:- (a) To coordinate the work and proceedings of the Commission, (b) To perform a leadership role in the work to be accomplished by the Commission, (c) To carry out general oversight and supervision of the financial administration, human resource management and office management of the Commission, (d) To perform or cause to perform other works as prescribed.

9. Remuneration and Facilities: (1) The remuneration and other facilities of the Chairperson and Members shall be as prescribed by the Nepal Government. (2) The remuneration prescribed pursuant to Sub-section (1) shall not be changed to the detriment of the Chairperson and Member as long as they hold office. (3) If a person receiving pension from the Nepal Government is appointed to the post of Chairperson or Member, such person shall, while holding such office, be entitled to receive only one of either the pension or the remuneration of the current post.

Chapter-4 Conduct of Business of the Commission

10. Office of the Commission: For the conduct of business of the Commission, there shall be an office of the Commission in the Kathmandu Valley.

11. Meeting of the Commission: (1) The work to be done by the Commission pursuant to this Act shall be done in accordance with the decision of the meeting of the Commission. (2) The meeting of the Commission shall be held on such date, time and place as specified by the Chairperson as required. (3) The Secretary of the Commission shall send a notice specifying the date, time and place of the meeting of the Commission along with the agenda to be discussed in the meeting to all members generally at least forty-eight hours before the time of the meeting. (4) If any member wishes to discuss any subject other than the subjects mentioned in the agenda to be discussed in the meeting pursuant to Sub-section (3), such member shall give a notice stating such subject and the reason therefor to the Secretary of the Commission at least twenty-four hours before the meeting. Upon receipt of such notice, the Secretary of the Commission shall inform all members thereof, and

such subject shall be deemed to have been included in the agenda of the meeting of the Commission. (5) Notwithstanding anything contained in Sub-sections (3) and (4), with the consent of all members present in the meeting of the Commission, discussion may be held and decisions may be made on subjects not included in the agenda. (6) If more than fifty percent of the members currently holding office in the Commission are present, the quorum for the meeting of the Commission shall be deemed to be constituted. (7) The meeting of the Commission shall be chaired by the Chairperson. (8) The decision of the Commission shall be made by a majority of votes, and in case of a tie, the Chairperson shall exercise the casting vote. (9) The record of the decision of the Commission shall be prepared by the Secretary of the Commission and kept signed by the Chairperson and Members. (10) The most senior employee of the Commission shall act as the Secretary in the meeting of the Commission. (11) Other procedures relating to the meeting of the Commission shall be as determined by the Commission. 12.

Not to Participate in Decision-Making Process in Case of Conflict of Interest: If any member of the Commission has an interest, concern or stake in any matter under consideration in the Commission, or if a close relative of such member is directly affected thereby, such member shall give prior information of such matter to the Commission and shall not participate in the decision-making process of the Commission on such matter. 13. **Division of Work:** The division of work of the Chairperson and Members shall be as specified by the Commission. 14. **Acting to Perform Functions:** If for any reason the post of Chairperson falls vacant, or such person is suspended, or goes on a foreign visit, or remains on leave for more than seven days, the most senior member of the Commission shall act as the acting Chairperson of the Commission. 15. **No Bar to the Work and Proceedings of the Commission:** The work and proceedings of the Commission shall not be barred merely by reason of the vacancy of any member. Chapter-5 Miscellaneous 16. **Organizational Structure and Employees of the Commission:** (1) The organizational structure and staff strength of the Commission shall be as approved by the Nepal Government. (2) The employees required for the conduct of business of the Commission shall be provided by the Nepal Government. 17. **Oath:** A member appointed after the commencement of this Act shall take an oath before the Chief Justice in accordance with the Schedule. 18. **To Observe Official Dignity:** The Chairperson and Members shall observe the official conduct in accordance with the prevailing law and the official dignity as follows:- (a) To perform their official duties independently, impartially and honestly, (b) Not to do any act that may disturb the relations among various castes, communities and religions. 19. **To Provide Assistance in Work and Proceedings:** If the Commission requests any body or office holder for assistance in the course of performing its functions, it shall be the duty of such body or office holder to provide such assistance. 20. **May Send Letter for Assistance:** If any body or office holder does not provide necessary assistance to the Commission, the Commission may send a letter for assistance to the body or officer under which such body or officer is subordinated. 21.

Annual Report: (1) The Commission shall submit an annual report of its work and proceedings to the President within three months from the date of expiry of the fiscal year. (2) The annual report pursuant to Sub-section (1) shall include the following subjects in addition to other subjects:- (a) Details of implementation and cost expenditure of the annual program of the Commission, (b) Details of recommendations and suggestions given by the Commission to the Nepal Government or any other body, (c) Status of implementation of recommendations and suggestions pursuant to Clause (b), (d) Financial and physical resources of the Commission and their utilization status, (e) Details of other work and proceedings carried out in relation to the fulfillment of obligations to be performed by the Commission pursuant to this Act. 22. **Contact with Nepal Government:** When contacting the Nepal Government, the Commission shall do so through the Ministry of Culture, Tourism and Civil Aviation. 23. **Delegation of Powers:** The Commission may, as required, delegate any of the powers conferred upon it pursuant to this Act, subject to prescribed conditions, to the

Chairperson, Member, Nepal Government, Provincial Government, any body or any officer or employee of the Local Government to exercise and comply with such powers. 24. Power to Make Rules: (1) The Commission may make necessary rules for the implementation of this Act. (2) If a rule to be made pursuant to Sub-section (1) contains any matter that imposes financial burden or liability on the Nepal Government, the Commission shall obtain the consent of the Ministry of Finance. (3) A rule made by the Commission pursuant to Sub-section (1) shall come into force from the date of its publication in the Nepal Gazette. 25. Power to Make Directives: The Commission may, subject to this Act and the rules made under this Act, make necessary directives for the smooth conduct or causing to conduct of the work to be performed by the Commission.